

CAUSE NO. 25-BC11A-0083

UNIMACTS GLOBAL, LLC,  
ZETWERK MANUFACTURING  
US INC., and ZETWERK  
MANUFACTURING BUSINESSES  
PRIVATE LIMITED,  
Plaintiffs,

v.

AYR ENERGY INC.  
Defendant.

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IN THE TEXAS BUSINESS COURT

11<sup>th</sup> DIVISION

JURY TRIAL DEMANDED

**DECLARATION OF SRINATH RAMAKKRUSHNAN IN SUPPORT OF  
PLAINTIFFS' OPPOSITION TO DEFENDANT'S AMENDED SPECIAL  
APPEARANCE AND CONDITIONAL MOTION FOR JURISDICTIONAL DISCOVERY**

1. My name is Srinath Ramakkrushnan. My date of birth is June 23, 1988. My business address is #84/1, Vaishnavi Sovereign, Green Glen Layout, Bellandur, Bangalore, Karnataka, India, 560103. The facts stated herein are true, correct, and within my personal knowledge unless otherwise expressly stated.

2. In this declaration, I refer to Unimacts Global, LLC ("Unimacts"), Zetwerk Manufacturing US Inc. ("Zetwerk USA"), and Zetwerk Manufacturing Businesses Private Limited ("Zetwerk India") collectively as "Plaintiffs" or "Zetwerk."

3. I am a Founder and Director of Zetwerk India and a Managing Member of Unimacts. Zetwerk USA is a wholly owned subsidiary of Zetwerk India. In this capacity with Zetwerk, I have knowledge of (i) Zetwerk's business practices; (ii) Zetwerk's confidential information and trade secrets, the resources and time Zetwerk has invested in developing its confidential information and trade secrets; (iii) Zetwerk's customer, employee, supplier, and vendor relationships, including Zetwerk's business strategies, customer development efforts, proposals, and negotiations in connection with the manufacture and sale of custom-built transformers for solar and battery storage projects; and (iv) Anirudh Reddy Edla's and Chadwick Stuckey's tenures with Zetwerk, their exposure to confidential information and trade secrets, and their roles and responsibilities in developing and managing certain business verticals at Zetwerk.

4. I have read Plaintiffs' Verified Amended Petition, Application for Temporary Injunction, and Request for Expedited Discovery (the "Amended Petition"). All factual statements contained in Section V of the Amended Petition (titled "Facts") that are not made on information and belief remain true and correct. I have also read Defendant Ayr Energy Inc's ("Ayr") Amended Special Appearance and associated declarations.

5. The documents I attach as Exhibits to this Declaration are true and correct copies of internal Zetwerk emails and other documents maintained in the ordinary course of Zetwerk's business.

### **Additional Facts Related to Ayr's Claim-Related Texas Contacts**

6. Before Ayr's wrongful conduct began, Zetwerk had invested heavily in identifying solar and energy storage developers that would benefit from Zetwerk's ability to supply custom-designed-and-manufactured transformers that would qualify the developers for the "physical work test" safe harbor established for alternative energy tax incentives under the Inflation Reduction Act. Zetwerk also invested heavily in identifying transformer customers who were not pursuing "safe harbor" status.

7. The information Zetwerk developed at significant time and expense regarding safe harbor and non-safe-harbor transformer customers constituted Zetwerk's trade secrets.

8. Through its efforts, Zetwerk identified multiple Texas-based transformer customers; in addition, many of the specific projects Zetwerk pursued, both for Texas-based customers and for out-of-state customers, are located within Texas.

9. In fact, less than three months before Stuckey left Unimacts to join Ayr, Stuckey and then-Unimacts Vice President of Global Business Development Juan Pradera engaged in an email exchange regarding Unimacts' expected 2025 transformer sales for annual budgeting purposes. In that exchange, Stuckey identified Texas-project sales to [REDACTED] and Texas-based [REDACTED] as deals Plaintiffs were "working on closing out as of now." Stuckey also identified [REDACTED] and Dallas-based [REDACTED]—both companies with which Plaintiffs were working on Texas-based transformer transactions—as "companies we'll be selling to" in connection with 2025 budgeting projections. **Ex. 1, Ex. 2.**

10. Although Plaintiffs' transformer customer pipeline was not limited to those entities identified in Unimacts' March 2025 solar business presentation for the 2026 Fiscal Year, [REDACTED], [REDACTED], and [REDACTED] all appear in that presentation. *See, e.g.,* Am. Pet. ¶72, Fig. 9.

11. I discuss these and other Texas-related transactions, by customer, below.

[REDACTED], TX)

12. [REDACTED] is an alternative energy project developer based in [REDACTED], Texas; according to its website, [REDACTED] headquarters is located at [REDACTED], Texas [REDACTED]. [REDACTED] appears on the above-referenced January 2025 budgeting email exchange as a transformer customer that Unimacts was "working on closing out as of now." **Ex. 1, Ex. 2.**

13. In late August 2024, Zetwerk began negotiating with [REDACTED] to provide Generator Step-Up ("GSU") transformers for [REDACTED] solar project near [REDACTED], Texas, its [REDACTED] project near [REDACTED], Texas, and for a future project whose location had not yet been determined. **Ex. 3.**

14. Anirudh Reddy Edla and Chadwick Stuckey were the primary Zetwerk points of contact with [REDACTED]. *See, e.g., id.*

15. According to Zetwerk's internal customer notes dated November 19, 2024, [REDACTED] updated its proposal request for the projects on November 13, 2024, asking that Zetwerk price the transformers "DDP" (delivered, duty paid) and "including field services." [REDACTED] also requested information regarding the manufacturing location for the transformers. **Ex. 4.**

16. The same notes indicate that [REDACTED] was "looking to standardize their transformer / breaker purchase strategy," and indicated that [REDACTED] needed "to make transformer purchases in 1-2 months" for a second-quarter 2026 delivery in connection with one of the projects for which Zetwerk was negotiating. *Id.*

17. On January 14, 2025, the day before Anirudh Reddy Edla left Zetwerk (but over two months before Stuckey joined him at Ayr), [REDACTED] emailed Stuckey requesting "updated transformer pricing for our [REDACTED] project located in [REDACTED], Texas." The email indicates that [REDACTED] planned to select a transformer vendor the following month and requested Zetwerk's proposal "no later than January 31, 2025." **Ex. 5.**

18. Stuckey responded the next day, promising to send a proposal to [REDACTED] in short order. *Id.*

19. On January 31, 2025, Zetwerk submitted its updated proposal for [REDACTED] project, which totaled almost \$[REDACTED] million. **Ex. 6.**

20. On February 3, 2025, [REDACTED] acknowledged receipt of the proposal. **Ex. 7.**

21. Despite [REDACTED] announced intention to select a vendor in February 2025, they still had not done so by mid-March 2025.

22. As of Stuckey's April 3, 2025, departure date, Zetwerk's [REDACTED] proposal was still live; in fact, on April 2, 2025, Stuckey forwarded the January 31 proposal and additional follow-up correspondence from his Unimacts email account to the Unimacts and Zetwerk personnel who would ultimately be responsible for the [REDACTED] relationship after Stuckey's departure. **Ex. 8.**

23. After Stuckey's departure, Plaintiffs followed up with [REDACTED] but received no return communication or feedback from the company. *See, e.g., Ex. 9; Ex. 10.*

[REDACTED] (*Dallas, Texas*)

24. [REDACTED] is a private equity fund focused on alternative energy development projects. [REDACTED] is based in Dallas, Texas; according to its website, [REDACTED] headquarters is located at [REDACTED], Dallas, Texas [REDACTED]. [REDACTED] appears on the above-referenced January 2025 budgeting email exchange as a customer to which Unimacts planned to sell transformers in 2025. **Ex. 1, Ex. 2.**

25. No later than October 2024, Zetwerk began discussions with Texas-based [REDACTED] regarding potential transformer sales. **Ex. 11.**



35. [REDACTED] is a renewable energy developer based in [REDACTED]. [REDACTED] appears on the above-referenced January 2025 budgeting email exchange as a transformer customer that Unimacts was “working on closing out as of now.” **Ex. 1, Ex. 2.** The [REDACTED] projects for which Plaintiffs were negotiating transformer sales included solar facilities in both [REDACTED], Texas and [REDACTED], Texas. **Ex. 15.**

36. As early as May 2024, Plaintiffs had identified [REDACTED] as one of a relatively small list of customers “that are the furthest along and with whom we have strong relationships already in place.” **Ex. 16.**

37. By November 12, 2024, [REDACTED] was requesting quotes for transformers which they expressly identified as safe harbor purchases to be completed before the end of 2024. This included purchases for a [REDACTED] and a [REDACTED] transformer for [REDACTED] [REDACTED] project in Texas and two [REDACTED] transformers for [REDACTED] project in [REDACTED], Texas. **Ex. 15.** From publicly available sources, it appears that the Cedar Draw project will be sited in [REDACTED], Texas.

38. In December 2024, Stuckey reported that ██████ had chosen not to move forward with its safe harbor strategy; this essentially reset the clock on ██████ transformer purchases into 2025. ██████ also suggested that Plaintiffs did not have sufficient experience in the transformer business at that time. Stuckey indicated that he believed that “if [Unimacts] improve[d its] OEM partnerships we might still be able to win this same transformer business early next year.” **Ex. 17.**

39. Indeed, as of January 26, 2025, Stuckey included █████ in the group of customers he was “working on closing out as of now.” **Ex. 1, Ex. 2.**

40. As of Stuckey's April 3, 2025 departure date, Zetwerk's ██████ proposal was still live; as he did with other customers, Stuckey forwarded ██████-related correspondence from his Unimacts email account to the Unimacts and Zetwerk personnel who would ultimately be responsible for the ██████ relationship after Stuckey's departure. **Ex. 18.**

41. After Stuckey's departure, Plaintiffs followed up with [REDACTED] but received no return communication or feedback in response. **Ex. 19.**

42. Despite █████ identifying concerns regarding Plaintiffs' purported lack of experience in the transformer business, █████

43. [REDACTED] is an alternative energy project developer headquartered in [REDACTED]. [REDACTED] appears on the above-referenced January 2025 budgeting email exchange as a customer that Unimacts to which Unimacts planned to sell transformers in 2025. **Ex. 1, Ex. 2.** From April 15, 2024, through April 2025, Unimacts and [REDACTED] were in discussions for Unimacts to provide transformers to [REDACTED] for a Texas-based project, and the discussion below concerns Unimacts' attempts to sell transformers to [REDACTED] for that project.

44. No later than April 12, 2024, Plaintiffs and [REDACTED] were in negotiations regarding certain of Plaintiffs' solar offerings. **Ex. 20.**

45. In early August 2024, Plaintiffs followed up with an invitation for [REDACTED] to join Plaintiffs at their booth during the upcoming RE+ trade show. In that email, Plaintiffs indicated that they were now offering transformers as well. **Ex. 21.**

46. In response, [REDACTED] expressed interest in several of Plaintiffs' products and referenced a need related to Texas. *Id.*

47. Stuckey responded to [REDACTED] by affirming the availability of specific products. *Id.*

48. In February 2025, Plaintiffs reached out to [REDACTED] again to note that they had sold \$20 million in transformers in December 2024, and to ask whether [REDACTED] would be at the upcoming Intersolar trade show. **Ex. 22.**

49. [REDACTED] responded by offering a meeting on February 28 or March 7, 2025. **Ex. 23.**

50. [REDACTED] and Plaintiffs met on February 28, 2025, about a month before Stuckey left Unimacts for Ayr. The discussion focused on Plaintiffs' potential provision of equipment for a Texas-based project. Stuckey's follow-up email forwarded documents providing an overview of Plaintiffs' offerings. **Ex. 24.**

51. [REDACTED] followed up in turn, emailing notes confirming Plaintiffs' expected design, manufacture, and delivery timelines for the products at issue. **Ex. 25.**

52. Plaintiffs and [REDACTED] continued negotiating and met again on March 18, 2025. **Ex. 26.** The negotiations culminated in Stuckey's promise just two weeks before leaving for Ayr that Plaintiffs would "be back in touch shortly with our proposal." **Ex. 27.**

53. As of Stuckey's April 3, 2025, departure date, Zetwerk's [REDACTED] proposal was still live; as he did with other customers, Stuckey forwarded [REDACTED]-related correspondence from his Unimacts email account to the Unimacts and Zetwerk personnel who would ultimately be responsible for the [REDACTED] relationship after Stuckey's departure. **Ex. 28.**

54. After Stuckey's departure, Plaintiffs followed up with [REDACTED] but received no return communication or feedback from the company. **Ex. 29; Ex. 30.**

### **Facts Beyond Plaintiffs' Knowledge**

55. All the Texas-related relationships and transformer provider opportunities described above—and virtually all similar opportunities nationwide—involve private parties on both sides of each transaction, significant incentives for secrecy, and very little transparency.

56. In fact, proposals of the sort I describe above are considered confidential and even when they are not, it is frequently impossible to assemble reliable and detailed information about any competitor's activities.

57. As a result, there are several categories of facts regarding Ayr's contacts with the State of Texas that Plaintiffs have no way of knowing.

58. For example, although Ayr's declarants Anirudh Reddy Edla and Chadwick Stuckey state that Ayr conducts a substantial percentage of its business in Texas, Plaintiffs cannot independently obtain meaningful information regarding the identities of Ayr's Texas customers and the location and development of Texas projects for which Ayr has solicited business or been engaged to provide transformers.

59. Nor can Plaintiffs independently obtain meaningful information regarding the scope of Ayr's contracts with its Texas customers and for Texas projects, including, at minimum, information regarding whether Ayr's Texas projects require Ayr to provide customers with customized, project-specific transformers, and the expected value to Ayr of each Texas-related contract.

60. Similarly, Plaintiffs have no way of learning for themselves the scope and extent of Ayr's marketing, solicitation, and sales efforts directed toward Texas companies and/or Texas projects, regardless of whether those efforts resulted in a contract.

61. Neither can Plaintiffs independently uncover details regarding Ayr's representations in its June 25, 2025, California Statement of Information, including but not limited details regarding its declaration in that document that it had no California street address and that its principal office is in Houston, Texas. *See* Decl. of Paul Stancil, **Ex. A**.

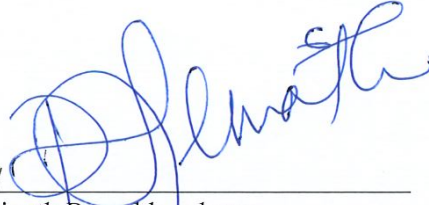
62. Plaintiffs also cannot independently determine the extent of Ayr's use of Zetwerk's trade secrets in developing Ayr's customer acquisition strategy, nor can they determine the extent to which Ayr solicited business for Texas-related opportunities based on their knowledge of Zetwerk's trade secrets.

63. Plaintiffs similarly cannot independently determine how the currently unknown and unknowable scope and value of Ayr's Texas-related marketing efforts compare with its similar efforts as to non-Texas-related opportunities.

64. Nor can Plaintiffs independently determine how the currently unknown and unknowable scope and value of Ayr's Texas-related contracts compare to the value of its contracts outside the state.

65. I declare under penalty of perjury that the foregoing is true and correct.

Executed in Bangalore, Karnataka, India on the 15th day of January 2026.

  
/s/ \_\_\_\_\_  
Srinath Ramakrishnan